ECONOMICS REPORT - 'Net Neutrality,' Gene Patents Face Legal Setbacks in US

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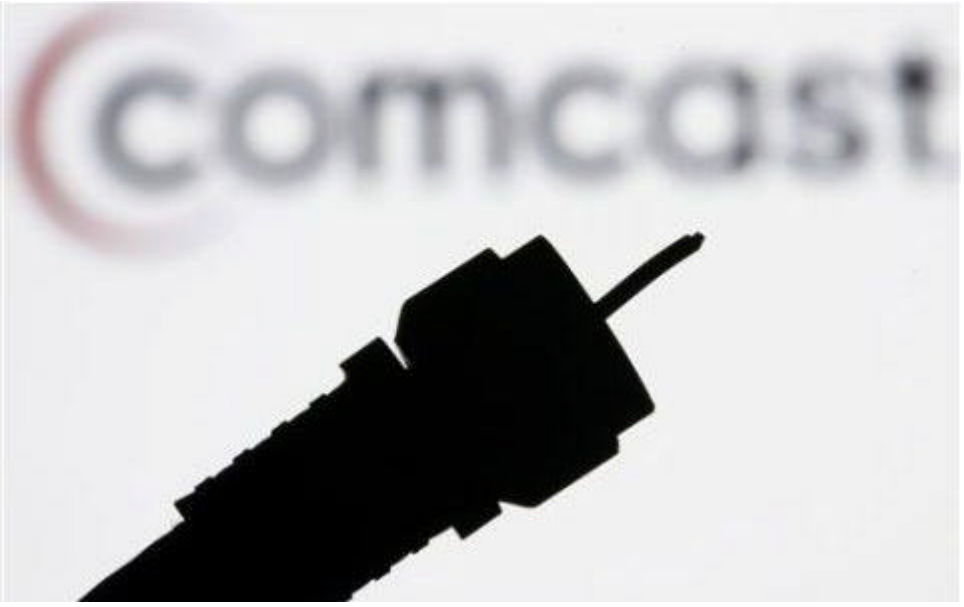

An appeals court ruled that the U.S. Federal Communications Commission lacked the power to tell cable provider Comcast to treat all content equally in its Internet service

This is the VOA Special English Economics Report.

Two rulings in the United States could change how information is controlled online and in our bodies.

On Tuesday, a federal appeals court in Washington ruled that current laws limit government power over Internet traffic.

The court rejected an order against America's biggest cable company. In two thousand seven, officials ordered Comcast to stop interfering with file-sharing programs used by its Internet customers. Comcast said big files slowed its network.

All three judges agreed that the Federal Communications Commission had no legal basis to tell Comcast what to do. The F.C.C. supervises communications by radio, television, wire, satellite and cable. But its power over Internet and wireless communications has long been questioned.

Now, unless Congress changes the law, network providers can slow or block services of competitors.

The decision comes just weeks after the F.C.C. announced its National Broadband Plan. The aim is faster, lower-cost connections for almost all Americans.

The F.C.C. says the court "in no way disagreed with the importance of preserving a free and open Internet." The agency could seek new powers to regulate Internet service and enforce net neutrality. That is the idea that all content on the Web should be treated equally.

In a different case, a ruling last week in New York has renewed debate about who can "own" genetic information.

Myriad Genetics received patents for methods to identify women with genes that create a high risk of breast cancer. Patents involving the two genes made Myriad the only company able to offer the costly tests.

But federal Judge Robert Sweet cancelled seven of twenty-three patents related to the genes. He said they violate the law against patents for products of nature.

Yet companies and universities often claim human genes as intellectual property. An estimated twenty percent of human genes have been patented in the United States.

Judge Sweet said the patent office thinks DNA should be treated like any other chemical compound. The idea is that its removal from the body and purification makes it into something different that can

be patented.

The judge said many consider this a "lawyer's trick" to avoid the ban on the direct patenting of DNA, but the result is the same.

Cancer activists and researchers fought the patents. Myriad is appealing the ruling.

And that's the VOA Special English Economics Report, written by Mario Ritter. I'm Steve Ember.